

No.DOPT-1668507678580
Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
AIS(AIS-I (S-III))

North Block, New Delhi
Dated 15 November, 2022

OFFICE MEMORANDUM

Subject:- Inter-Cadre Deputation in respect of All India Service officers – policy regarding.

The undersigned is directed to say that Rule 6(1) of the IAS (Cadre) Rules, 1954 and analogous provisions in the IPS (Cadre) Rules, 1954 and IFS (Cadre) Rules, 1966 read as follows:

"6(1) A cadre officer may, with the concurrence of the State Governments concerned and the Central Government, be deputed for service under the Central Government or another State Government or under a company, association, or body of individuals, whether incorporated or not, which is wholly or substantially owned or controlled by the Central Government or by another State Government.

Provided that a case of any disagreement, the matter shall be decided by the Central Government and the State Government or State Governments concerned shall give effect to the decision of the Central Government."

2. The Department of Personnel and Training (DoPT) has from time to time issued various instructions/guidelines to be followed by the concerned Cadre Controlling Authorities while processing requests for inter-cadre deputation under Rule 6(1) of Cadre Rules. Therefore, an effort has been made to consolidate and update the said guidelines at one place for better understanding and guidance, as follows.

3. The Competent Authority in supersession of this Department's OMs (i) No.13017/16/2003-AIS(I) dated 08.11.2004; (ii) No.13017/8/2002-AIS-I dated 14.08.2013; (iii) No.13017/15/2013-AIS-I dated 21.11.2014; (iv) No.13017/09/2016-AIS-I dated 12.04.2016; (v) No.13017/16/2003-AIS-I dated 05.09.2017; (vi) No.13017/05/2013-AIS-I dated 11.11.2017; (vii) No.13017/16/2003-AIS.I dated 10.04.2018; (viii) U.O. No.37/2/2018-EO(SM-I) dated 25.05.2018; and (ix) No.13017/16/2003-AIS-I dated 28.06.2018, has now decided that inter-cadre deputation may be availed of by AIS officers with the following conditions:

- a. Inter-cadre deputation will be available to the officers only after completion of nine years of service in his or her cadre and before reaching pay at Level 14 of the Pay Matrix in his or her home cadre.

- b. 1st July of the batch year is to be considered as the starting date of calculating length of service for the purpose of counting 9 years of eligibility of the AIS officers seeking inter-cadre deputation. Further, 1st July of the year of allotment in case of promotee IAS officers is to be considered for computing nine years of eligibility for seeking inter cadre deputation.
- c. Inter-cadre deputations have normally been processed only in cases where individual officers have sought a deputation in view of the personal difficulties. A request for inter cadre deputation will be entertained only if it is forwarded by the State Government concerned with their consent/No Objection alongwith the request of the officer.
- d. All cases of inter-cadre deputation of All India Services officers will initially be restricted to three years, extendable by two more years, after review.
- e. The total allowable period of inter-cadre deputation in the entire career of the officer shall be five years. No extension of inter-cadre deputation beyond five years shall be allowed.
- f. The officers who are already on deputation and get Supertime scale while on deputation, may be allowed to complete their full term.
- g. A request for extension (upto a maximum period of five years) will be entertained only if it is forwarded by the State Government concerned with cogent reasons and at least three months prior to the expiry of the period of deputation. In case no specific approval of the central Government for extension is received within the period for which deputation was originally valid, the officer shall have to be relieved positively and immediately on completion of the original tenure.
- h. In cases where an officer has completed the approved period of inter-cadre deputation it would be made clear to the officer and to the State Government concerned that adverse notice will be taken at the time of empanelment and promotion of the officer if the officer continued on inter cadre deputation beyond the approved period of deputation.
- i. The inter-cadre deputation is valid only for the period for which it is allowed by the Central Government and any extension is neither automatic nor should it be presumed merely on the ground that the State Government concerned or officer or both had made a request to Central Government for extension. As such, the officer shall be entitled to draw salary etc. in the State to which he/she has been deputed only for the period for which he/she has been allowed deputation by the Government of India. He/she shall not be entitled to draw salary, etc. after expiry of the period of deputation. An officer on such deputation shall relinquish charge and get himself/herself relieved on the last day of his/her deputation if no orders extending his/her deputation by the concerned Cadre Controlling Authority i.e. Department of Personnel and Training in the case of the Indian Administrative Service, the Ministry of Home Affairs in the case of the Indian Police Service and the Ministry of Environment and Forests in the case of the Indian Forests Service, are received in the State Government.
- j. An officer who does not handover charge at the end of the approved period of deputation will be immediately liable to disciplinary action and break-in-service for the period beyond the approved date. All orders of deputation will carry endorsement to this effect and further an endorsement to the Accountant General to stop payment of salary to the officer beyond the approved period of deputation.
- k. The copy of all deputation orders must be marked to /served on the officer concerned alongwith State Governments and others concerned.
- l. In the event the officer overstays for any reason whatsoever, he/she is liable for disciplinary action and other adverse Civil/Service consequences which would

include the period of over stay not being counted for service for the purpose of pension and that any increment due during the period of overstay being deferred with cumulative effect, till that date on which the officer rejoins in his parent cadre.

- m. The State Governments are advised to relieve the officer promptly on the last date of completion of the inter cadre deputation tenure without fail unless the competent authority extends the period of deputation in writing prior to its date of expiry.
- n. Grant of leave to officer on completion of their tenures of Inter cadre deputation - On reversion from inter cadre deputation, the officers concerned might be allowed leave not exceeding two months by the concerned cadre where the officer was on deputation and that the officer concerned should apply for further leave to his/her parent cadre. Further, such leave is debitable from the leave account of the Officer.
- o. Cooling off Period:
 - i. If officers from outside cadres go on deputation to North East cadres, the conditionalities of cooling off would be waived off, provided he completes a term of deputation of at least five years.
 - ii. Thus, an officer from any other cadre would be allowed to go on deputation to the North East directly after a full period of Central deputation without cooling off.
 - iii. Conversely, an officer from any other cadre would be given a full term of Central deputation directly after a full term of deputation in the North East for at least five years, without cooling off, on the basis of the officer's own request and subject to cadre clearance.
 - iv. In all other cases, 'cooling off' requirement shall be governed by the provisions contained in 'Consolidated Deputation Guidelines for All India Services' issued vide DoPT O.M. No. 14017/33/2005-AIS(II)(Pt.) dated 28.11.2007.

4. The Ministry of Home Affairs and the Ministry of Environment, Forests & Climate Change are requested to consider all the requests for Inter-Cadre Deputation keeping in view the aforesaid consolidated guidelines. All such requests shall continue to be processed and submitted for the consideration of the Appointments Committee of the Cabinet after obtaining approval of the Minister-in-charge.

(Sign of Authority)

Udai Bhan Singh

Under Secretary to the Government of India

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Copy to:

- 1. The Secretary,
Ministry of Home Affairs,
North Block, New Delhi
- 2. The Secretary,
Ministry of Environment, Forests & Climate Change,
Parvayaran Bhawan, New Delhi.

3. Director General of Forests and Special Secretary,
Ministry of Environment, Forests & Climate Change,
Parvayaran Bhawan, New Delhi.

Copy also forwarded for information and necessary action:-

1. Establishment Officer & Additional Secretary,
Department of Personnel and Training,
North Block, New Delhi
2. Director,
Prime Minister's Office,
South Block, New Delhi.

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